

Court No. - 35

Case :- WRIT - C No. - 11501 of 2018

Petitioner :- Om Prakash Pandey

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Thakur Prasad Dubey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Learned counsel for the respondent has appeared and is providing a corrected bill to the petitioner in presence of the court today. Learned counsel for the petitioner may take instructions by 11.4.2018. Put up as fresh on 11.4.2018.

Order Date :- 3.4.2018

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Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Thakur Prasad Dubey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Heard learned Counsel for the petitioner and Sri Mahboob Ahmad, learned Counsel for the respondent-department.

On the last occasion a corrected bill was supplied to the petitioner. Although he does not dispute in principal that the amount, which has been found due against him is correct, he is raising a dispute with regard to the bill of fixed charges, which has been included in the said bill on the ground that his electricity had been temporarily disconnected for certain period, therefore, he is not liable to pay the fixed charges.

This notion of the petitioner is not acceptable at all. Unless there is a permanent disconnection he will have to pay the fixed charges that is the law.

In view of the disputes being raised by the petitioner, it is open to him to take recourse to the remedy available under Section 6.5 of the Electricity Supply Code, 2005. In case, the petitioner does so within a period of 15 days from today, no coercive action may be taken against him till disposal of his objection. His objection may be decided in accordance with law.

The Writ Petition stands disposed of. No costs..

Order Date :- 11.4.2018

S.P.